IN THE UNITED STATES COAST GUARD
COURT OF CRIMINAL APPEALS

UNITED STATES, Appellee	6 May 2019 ANSWER TO APPELLANT'S ASSIGNMENTS OF ERROR ON BEHALF OF THE UNITED STATES
v.	CGCMSP 24978 Docket No. 1464 Before McClelland, Brubaker, Koshulsky
Justin D. Steen, Boatswain's Mate Third Class (E-4) U.S. Coast Guard, Appellant.	Tried at Norfolk, Virginia by a special court-martial convened by Commanding Officer, USCGC FOWARD, on 5-9 June 2018.

TO THE HONORABLE, THE JUDGES OF THE UNITED STATES
COAST GUARD COURT OF CRIMINAL APPEALS

The United States, through undersigned counsel, submits this answer and brief in accordance with Rule 15 of this honorable Court's Rules of Practice and Procedure.

STATEMENT OF THE CASE

The Appellant, Boatswain's Mate Third Class Third Class Justin D. Steen, was tried at a special court-martial on 5-9 June 2018 for one specification of wrongful introduction of a controlled substance onto a military installation in violation of Article 112a, UCMJ, 10 U.S.C. § 912a (2016), and one specification of wrongful distribution of a controlled substance in violation of Article 112a, UCMJ, 10 U.S.C. § 912a (2016).[1] Contrary to his pleas, a panel consisting of officer and enlisted members found Appellant guilty of both specifications under Article 112a,

[1] Charge II for failure to obey an order or regulation was withdrawn and dismissed without prejudice on 4 June 2018, prior to trial.

UCMJ. On 9 June 2018, the members sentenced Appellant to reduction in paygrade to E-1, confinement for fifteen days, and a bad conduct discharge. Special Court-martial Order 1-18. On 1 October 2018, the convening authority approved the findings and sentence, and, except for the bad conduct discharge, ordered the sentence executed. Convening Authority Action dtd 1 Oct 18. The Judge Advocate General referred the case to this honorable Court on 29 October 2018. This Court has jurisdiction over this case pursuant to Article 66(b)(1), UCMJ, 10 U.S.C. § 866(b)(1) (2016).

STATEMENT OF FACTS

On 4 November 2017, Appellant entered Coast Guard Base Portsmouth, driving his blue Dodge Charger. He had with him four grams of marijuana he intended to sell to Seaman [redacted]. R. at 355.[2] Appellant picked up [redacted] in parking lot 11, adjacent to the moored CGC FORWARD. The two proceeded directly to the Coast Guard Exchange in order for [redacted] withdraw money from the ATM at the Exchange. R. at 359-60, 556. Within two minutes of entering the Coast Guard Exchange, [redacted] returned to Appellant's car with $80 cash. [redacted] gave Appellant $65 in exchange for four grams of marijuana. R. at 359, 415. The two drove directly back [redacted] black Dodge Dakota truck, also located in parking lot 11. R. at 412-413, 556. After pulling up to [redacted] vehicle, [redacted] got out of Appellant's car and placed the marijuana in the center console of his truck. R. at 414. At that point Appellant departed Base Portsmouth. R. at 415. [redacted] movements were corroborated by surveillance video that showed both the parking lot and the Coast Guard Exchange. PE 1-3.

[2] References to the record throughout this brief are to page numbers in the .pdf version of the entire record of trial, which is different from the citation method used by Appellant in his Assignments of Error. Appellant's citations are to Volume numbers in the paper copy of the record, but as the transcriptionist did not number the volumes, for sake of clarity the Government used the .pdf page numbers. To aid in cross-referencing Defense Counsel's volume numbers begin on the following pages of the .pdf file: Vol. 1, R. at 27; Vol. 2, R. at 74; Vol. 3, R. at 131; Vol. 4, R. at 382; Vol. 5, R. at 646; Vol. 6, R. at 876.

The same day, after selling [redacted] the four grams of marijuana, Appellant departed the Portsmouth area, headed to Charlotte, North Carolina. R. at 585-6, 613. Upon arriving in North Carolina, on 6 November 2017, Appellant contacted his friend [redacted] and in a series of text messages asked about obtaining marijuana. R. at 591, 593, 605, 613; PE 5 at 8.

Meanwhile, on 8 November 2017 SA [redacted] was stopped by the Virginia Beach Police Department for running a stop sign. R. at 391, 427. Upon rolling down the window to speak to the Virginia Beach Police, the responding officer inquired if [redacted] had anything illegal in his vehicle. R. at 391-2. [redacted] admitted to the Virginia Beach Police he had two (remaining) grams of marijuana. [redacted] later that day informed the Virginia Beach police he purchased the marijuana from Appellant. R. at 392. The following day, 9 November 2017, [redacted] was interviewed by CGIS. R. at 393. During the CGIS interview, [redacted] disclosed that Appellant sold him the marijuana on board Base Portsmouth on 4 November 2017. *Id.*

[redacted] admissions to CGIS led to Appellant being charged with introduction of marijuana onto a military installation and distribution of marijuana in violation under Article 112a, UCMJ, 10 U.S.C. § 912a (2016). As a part of his agreement with Government, [redacted] was offered a grant of immunity and a promise of leniency to testify against Appellant. R. at 394.

As the case proceeded to trial Appellant, through counsel, filed a motion to suppress the text messages pertaining to Appellant's attempts to obtain marijuana. R. at 90-1; AE VI. At the start of trial on 5 June 2018, the military judge addressed this motion. Appellant argued the text messages were not admissible under Mil R. Evid. 404(b) as the evidence did not indicate any intent, motive, plan, knowledge, or state of mind at the time of the charged offenses. Appellant asserted the attempts to obtain marijuana happened after and apart from any sale to [redacted], and Appellant's desire to acquire marijuana was being offered as propensity evidence, something

Mil. R. Evid. 404 prohibits. R. at 94-96. At the motion hearing, the military judge ruled in favor of Appellant, finding "whether or not he did something after that that made him want to get more or less marijuana is not relevant to the offense that he was charged with. However . . . this may be relevant evidence on rebuttal if Defense opens the door to making this evidence relevant." R. at 99; AE VIII.

After the Government rested its case, Appellant testified in his own defense. During direct examination, Appellant denied selling marijuana to SA [redacted]. R at 565. He also indicated that he and [redacted] were not friends and, prior to [redacted] contacting him via text on 3 November 2017 to ask about where he could get marijuana, had not communicated via text or phone. R. at 529-30; 544-47. When [redacted] asked about where to get marijuana, Appellant stated he tried to pass on [redacted] cell number to a civilian with whom he played basketball that be believed smoked marijuana. R. at 54-547. Further, Appellant asserted the only reason Appellant was on Base Portsmouth 4 November 2017 was to deliver hair products for another Coast Guard member, SN [redacted]. His stated plan was to give the hair care products to [redacted] to deliver them to [redacted] but that as he arrived at Base Portsmouth, [redacted] contacted Appellant and asked that he ship the hair care products to [redacted] father's address instead. Appellant denied that [redacted] ever gave him any money and asserted the reason he took [redacted] to the Exchange was that he felt bad for calling him out to from the ship for nothing since he did not need [redacted] to take the hair care products after all. R. at 529-30, 544-57, 562, 565. As Appellant neared the conclusion of his direct testimony he also stated that he had been subject to random urinalysis testing between 12 and 15 times during his five years on active duty and had to provide both a hair sample and participate in a urinalysis upon his return to the Coast Guard from terminal leave on 13

November 2017. R. at 561-62. He indicated he had never tested positive for drugs on any of these tests. *Id*.

Based on Appellant's statements, trial counsel requested a 39(a) session and asked the judge reconsider his earlier ruling excluding Appellant's text messages. R. at 566-7; *see* AE VIII at 3. Trial counsel's position was that Appellant opened the door to admit the text messages. R. at 574. The military judge reconsidered his earlier decision and found that based on Appellant's testimony the text messages were admissible. R. at 571-2; AE VIII. Trial counsel then questioned Appellant regarding the content of the text messages. R. at 591-5. Trial counsel also questioned Appellant about indications found on his phone of an internet search performed on 22 October 2017 looking in the Newport News backpages for "weed seller". R. at 594; PE 5 at 9. At the conclusion of trial, the members found Appellant guilty of both specifications of violation of Article 112a, UCMJ.

Other facts necessary to resolving the errors assigned are discussed below.

I. THE MILITARY JUDGE PROPERLY ADMITTED EVIDENCE OF APPELLANT'S ATTEMPTS TO OBTAIN MARIJUANA UNDER MIL. R. EVID. 404(B) AFTER APPELLANT TESTIFIED THAT THAT HE DID NOT SELL MARIJUANA TO SA [redacted] AS WELL AS THAT HE HAD PASSED 12 TO 15 URINALYSES WHILE IN THE COAST GUARD AND NO DRUGS WERE FOUND IN HIS SYSTEM WHEN HE WAS SUBJECTED TO A HAIR TEST AND URINALSYIS UPON HIS RETURN TO THE COAST GUARD ON 13 NOVEMBER 2017.

Standard of Review

This Court reviews a military judge's decision to admit evidence for an abuse of discretion. *United States v. Barker*, 77 M.J. 377, 383 (C.A.A.F. 2018) (citation omitted). A military judge's interpretation of a rule of evidence is reviewed *de novo*. *United States v. Barker*, 77 M.J. at 382.

Discussion

A military judge abuses his discretion when he admits evidence based on an erroneous view of the law. *United States v. Lubich*, 72 M.J. 170, 173 (C.A.A.F. 2013) (citing *United States v. Freeman*, 65 M.J. 451, 453 (C.A.A.F. 2008)). "Further, the abuse of discretion standard of review recognizes that a judge has a range of choices and will not be reversed so long as the decision remains within that range." *Id.*

A. The military judge properly admitted the evidence of Appellant's text messages seeking to obtain marijuana within two days of his sale of marijuana to SA [redacted]

As a general rule only relevant evidence is admissible. Mil. R. Evid. 401 and 402; *United States v. Reynolds*, 29 M.J. 105, 109 (C.A.A.F. 1989). Evidence must "make the existence of any fact that is of consequence to the determination of the action more probable or less probable than it would without the evidence" and "its probative value must not substantially be outweighed by the danger of unfair prejudice." Mil. R. Evid. 401; Mil. R. Evid. 403. Mil. R. Evid. 404 generally prohibits use of character evidence to prove that an accused acted in accordance with a particular character trait, but does allow evidence of other crimes, wrongs or acts if the evidence is offered for some other purpose than to show bad character. Evidence offered under Mil. R. Evid. 404 (b) ". . . need not fall within a category listed but must be legally and logically relevant." *United States v. Tyndale*, 56 M.J. 218, 215 (C.A.A.F. 2001). The test under Mil. R. Evid 404(b) is "whether the evidence of the misconduct is offered for some purpose other than to demonstrate the accused's predisposition to crime [i.e. character.]" *United States v. Castillo*, 29 M.J. 145, 150 (C.M.A. 1989); *see also United States v. Acton*, 38 M.J. 330 (C.M.A. 1993).

In *United States v. Reynolds,* the Court of Appeals for the Armed Forces established a three part test to determine if uncharged misconduct is admissible under Mil. R. Evid. 404(b)(2).

was the phrase "weed seller" searched on 22 October 2017, after testifying that he had never tested positive for drugs during his time in the Coast Guard, by the time he left the witness stand Appellant's credibility had gone up in smoke. PE 5 at 9. Appellant's convictions are factually sufficient.

Conclusion

The military judge appropriately used his discretion, reconsidered his earlier ruling, and allowed use of text messages and internet searches after Appellant denied selling marijuana to SA [redacted] and asserted he had never failed a drug test. Given the evidence that was before him at the point where Appellant completed his direct examination, the text messages and internet search information were admissible under both Mil. R. Evid. 404(b) and to impeach Appellant under Mil. R. Evid. 608(b). In addition, the evidence is both legally and factually sufficient.

PRAYER FOR RELIEF

WHEREFORE, the United States prays that this honorable Court affirm the findings and sentence.

Respectfully submitted,

DATE: 6 May 2019

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CERTIFICATE OF SERVICE

I certify that a copy of the foregoing was delivered to the Court and opposing counsel on 6 May 2019.

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